

appears to offer a civil remedy for unlawful searches; ³⁴ petitioners do not claim that none is available. Rather they assert that they have been deprived of due process of law and of equal protection of the laws under color of state law, although from all that appears the courts of Illinois are available to give them the fullest redress which the common law affords for the violence done them, nor does any "statute, ordinance, regulation, custom, or usage" of the State of Illinois bar that redress. Did the enactment by Congress of § 1 of the Ku Klux Act of 1871 encompass such a situation?

That section, it has been noted, was patterned on the similar criminal provision of § 2, Act of April 9, 1866. The earlier Act had as its primary object the effective nullification of the Black Codes, those statutes of the Southern legislatures which had so burdened and disqualified the Negro as to make his emancipation appear illusory.³⁵ The Act had been vetoed by President Johnson, whose veto message describes contemporary understanding of its second section; the section, he wrote,

"seems to be designed to apply to some existing or future law of a State or Territory which may conflict with the provisions of the bill It provides for counteracting such forbidden legislation by imposing fine and imprisonment upon the legislators who may pass such conflicting laws, or upon the officers or agents who shall put, or attempt to put, them into execution. It means an official offense, not a com-

³⁴ See *Bucher v. Krause*, 200 F. 2d 576 (C. A. 7th Cir.).

³⁵ See Cong. Globe, 39th Cong., 1st Sess. 474, 602, 1117-1118; 1123-1124, 1151, 1159-1160, 1758-1759. See 1 Fleming, *Documentary History of Reconstruction* (Reprint 1950) 273-311; 2 *Com-mager, Documents of American History* (6th ed. 1958) 2-7, for typical Black Code provisions. A more dispassionate appraisal of the Codes than was possible during the turbulence of Reconstruction is found in Randall, *The Civil War and Reconstruction* (1937) 724-730.